

STUDENT DISCIPLINE

Loudoun County Public Schools (LCPS) recognizes that safe, orderly, and respectful learning environments are essential to student success. The purpose of student discipline is to promote and maintain such environments while supporting students in developing self-discipline, responsibility, and respect for others.

Students are accountable for conduct that disrupts the educational environment or threatens the safety of students or staff. Responses to such conduct shall be fair, consistent, and based on the specific facts of each case, while taking into account the individual circumstances of each student. Disciplinary responses combine sanctions with interventions and, whenever practicable, incorporate restorative practices and strategies within a Multi-Tiered System of Supports (MTSS).

This policy establishes expectations for student conduct; outlines the respective roles and responsibilities of students, parents and guardians, LCPS administrators, and the School Board in promoting appropriate behavior; identifies conduct that may result in disciplinary action; and recognizes limited circumstances in which student actions will not result in disciplinary sanctions, including reasonable acts of self-defense and good faith efforts to provide emergency assistance to protect the safety of others.

A. Roles and Responsibilities.

1. Students. The students are expected to arrive at school and to each class on time, prepared, and ready to learn. Rules for student behavior are outlined in this policy and incorporated in The *Student Rights and Responsibilities Handbook for Families and Student Code of Conduct* (SR&R). Students are expected to follow these rules and conduct themselves in a manner that supports a safe, respectful, and productive learning environment.

2. Parents and Guardians. Parents and guardians are expected to reinforce the expectations for student conduct and support their children's education by ensuring regular attendance, encouraging punctuality, and helping their children come to school prepared and ready to learn. They are encouraged to maintain open communication with LCPS staff and to collaborate with LCPS administrators and staff to promote positive behavior and support their children's academic and social development.

- a. Parents and guardians are asked to review and acknowledge receipt of the SR&R each year. Failure to acknowledge receipt does not exempt any student from disciplinary action in the event of misconduct.
- b. Parents and guardians are expected to provide adequate supervision for students during periods of suspension and to work collaboratively with LCPS staff to ensure that assignments are completed during any suspension.

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- c. Parents and guardians are expected to meet with LCPS administrators and/or staff, upon request, to review the expectations for student conduct and develop strategies to improve their children's behavior, and/or attendance.

3. Teachers and Instructional Staff. Teachers and instructional staff are responsible for maintaining a safe, respectful, and productive learning environment that promotes student achievement. They are expected to clearly communicate and consistently reinforce the expectations for student behavior outlined in School Board policy. Teachers are expected to manage classroom behavior equitably; address minor misconduct promptly through positive interventions; and maintain open communication with parents and guardians regarding student conduct. When misconduct requires intervention beyond the classroom, teachers are responsible for making referrals to school-based administrators and/or support staff, as appropriate.

4. School-Based Administrators. School-based administrators are responsible for the effective management of their schools to promote student achievement and maintain a safe and secure learning environment. They have primary responsibility for enforcing School Board policies, accompanying LCPS regulations, and the SR&R. The authority of school-based administrators to impose disciplinary sanctions is established in Policy 8205, Authority to Take Disciplinary and Other Action Against Students; and Policy 8220, Student Disciplinary Sanctions, and its accompanying regulations.

5. Superintendent and Superintendent's Designee. The director of the Office School Administration (OSA) and the OSA hearing officer serve as the Superintendent's designee in matters related to student discipline. The authority of the Superintendent and Superintendent's Designee to impose disciplinary sanctions is established in Policy 8205, Policy 8220, and the regulations that accompany Policy 8220 (i.e., Regulation 8220.1, Implementing Student Disciplinary Sanctions; Regulation 8220.2, Expulsion by School Board; and Regulation 8220.3, Disciplinary Procedures for Students with Disabilities).

6. School Board. In accordance with Virginia law, only the School Board has the authority to establish student conduct policies. The authority of the School Board – or a three-member committee thereof – to impose disciplinary sanctions is established in Policy 8205, Policy 8220, and the regulations that accompany Policy 8220.

B. Student Disciplinary Sanctions. When a student engages in misconduct for which LCPS has authority to take disciplinary action under Policy 8205, a range of interventions and sanctions are implemented in response. Permissible student disciplinary sanctions and the procedures for their imposition are set forth in Policy 8220 and its accompanying regulations.

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1. Under law and School Board policy, certain misconduct related to weapons, drugs or other prohibited substances is expressly prohibited on LCPS property or during LCPS or school-sponsored activities. Such misconduct may result in the imposition of prescribed sanctions or interventions, as set forth in Policy 8240, Alcohol, Drug, Tobacco, and Electronic Cigarettes, and its accompanying regulation; and in Policy 8235, Weapons.

2. Other student misconduct may result in the imposition of sanctions and interventions, as determined by the principal or assistant principal in accordance with the LCPS Guide to Leveled Responses, which is utilized by LCPS administrators to encourage consistency in the imposition of discretionary sanctions.

C. Conduct for Which Students May be Disciplined. Prohibited conduct encompasses any behavior incompatible with a K-12 educational environment and includes, but is not limited to, assault; disruptive behavior; violations related to alcohol, drugs, tobacco/nicotine or other prohibited substances; property violations; and weapons violations. The violations listed herein are examples of prohibited conduct and include, but are not limited to, the following:

1. Threatening or intimidating another person;
2. Physically or sexually assaulting another person, individually or as part of a group¹, whether or not causing physical injury;
3. Stalking, which is defined in Virginia Code § 18.2-60.3 as engaging in conduct on more than one occasion that is intended to place another person in reasonable fear of death, sexual assault, or bodily injury to that person or to that person's family or household member, or where such conduct would be reasonably known to do the same;
4. Hazing as set forth in Regulation 8030.4²;
5. Engaging in reckless behavior that creates a risk of injury to self or others;

¹ Any collection of students assembled with the intention of committing an assault constitutes a group. Each student who joins the group with the intent to commit, assist, or encourage the assault shall be held directly responsible for any assault committed by one or more members of the group. Students who are present solely as spectators or bystanders are not considered part of the group and will not be held responsible for the assault; however, spectators and bystanders may be held responsible for other misconduct, such as filming the assault or failing to disperse when directed to do so.

² Pursuant to Virginia Code § 18.2-56, the school administration shall report to the Commonwealth's Attorney any hazing that caused bodily injury.

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6. Taking part in, assisting, facilitating, or promoting any activity at the direction or for the benefit of a criminal street gang, as defined in Virginia Code §18.2-46.1;
7. Inappropriate physical contact with another person, whether or not consent is given;
8. Fighting, whether or not causing injury;
9. Cursing or verbally abusing another person;
10. Bullying or cyberbullying another person as set forth in Policy 8250, Bullying Prevention and Education;
11. Discriminating against or harassing another person based on that person's actual or perceived membership in a protected category, as set forth in Policy 8030, Student Discrimination and Harassment; Policy 8035, Title IX, Sex-Based Discrimination, Sexual Harassment; and their accompanying regulations;
12. Engaging in sex-based misconduct, including by making unwelcome sexual advances, requesting sexual favors, possessing or displaying obscene imagery, or indecently or lewdly exposing body parts;
13. Using (verbally, in writing or by gesture) vulgar, profane, obscene or patently offensive language, including slurs or other hateful speech based on a person's actual or perceived membership in a protected category;
14. Using (verbally, in writing or by gesture) language, signs or symbols (including but not limited to clothing, accessories, or manners of grooming) that commonly denote membership in, or affiliation with, a criminal street gang;
15. Interrupting, disrupting, or interfering with student learning or the operation of any LCPS school or activity;
16. Failing to comply with a directive of an LCPS employee;
17. Possessing or using items that are not appropriate for school and disruptive to the learning environment;
18. Violating Policy 8650, Student Technology Acceptable/Responsible Use Policy, including by using or accessing, illegally or without authorization, any LCPS device, software, telecommunication or related technology; or harming or disrupting LCPS information technology;

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19. Using personal technology device (including, but not limited to, any cell phone, laptop, tablet, smartwatch, earbud, personal gaming device or other technology) in violation of Policy 8655, Student Personal Device Use;
20. Forgery, cheating, plagiarism, or dishonesty;
21. Gambling;
22. Possessing or using matches, lighters or devices of like kind;
23. Possessing, using, distributing³, facilitating the distribution of, or being under the influence of alcohol, drugs, tobacco products, nicotine or THC⁴ vapor products, or any other prohibited substance in violation of Policy 8240⁵;
24. Possessing using, or distributing drug paraphernalia, electronic cigarettes, vapes or any other device in violation of Policy 8240;
25. Possessing or using any weapon in violation of Policy 8235;
26. Trespassing upon or accessing LCPS property or any portion of LCPS property without authorization or failing to leave LCPS property promptly after being told to do so by an LCPS employee or law enforcement officer;
27. Causing or attempting to cause damage to LCPS or personal property;
28. Theft or attempted theft of LCPS or personal property;
29. Vandalism, arson or any threat to bomb, burn, damage or destroy LCPS or personal property;
30. Violating Policy 8270, Student Dress Code;
31. Violating attendance expectations including by being absent from, or tardy to, school or class without excuse or by leaving school or class without permission;
32. Retaliating against any person due to that person's actual or perceived report or participation as witnesses in the investigation of any misconduct; and

³ Distributing includes, without limitation, giving, sharing, or selling, or intending or attempting to do the same.

⁴ Tetrahydrocannabinol (THC) is the primary active ingredient in marijuana.

⁵ Student disciplinary action will be taken regardless of whether the student's age is such that the possession or use of a prohibited substance is permitted by law.

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33. Failing to attend an assigned disciplinary setting or to abide by a disciplinary restriction.

D. Reimbursement.

1. The student – or the student's parent or guardian – may be required to reimburse the School Board for any loss, damage, destruction or failure to return property owned by or under the control of the School Board that is caused by the student.

2. LCPS will not bear the responsibility for a student's loss, damage, or destruction of property that is not owned by or under the control of the School Board – or a student's failure to return another person's property. However, a student who damages, destroys or steals another person's property may be asked to compensate the owner, either by restoring the property to its original condition or by paying for its repair or replacement.

E. Criminal Charges and/or Convictions. Disciplinary or other action may be taken against a student who has been charged with, and/or convicted or adjudicated delinquent of, an offense as set forth in Policy 8205 and Virginia Code § 22.1-277.2:1.

F. Self-Defense. Students are expected to resolve conflicts peacefully and to seek support and assistance from a school-based administrator, school counselor or teacher before a conflict escalates to physical aggression. When this is not possible, and only as a last resort when confronted with imminent danger of physical harm, a student may use reasonable physical force in self-defense. A student who acts in self-defense must disengage and seek assistance from school staff as soon as the threat of imminent danger of physical harm has passed.

1. Whether a student has acted in self-defense may be considered by the appropriate LCPS administrator when determining whether a violation of this policy has occurred and, if so, the appropriate disciplinary sanction.

2. In order for a claim of self-defense to be supported, the LCPS administrator must determine that the student:

- a. Was without fault in provoking or escalating the incident;
- b. Reasonably believed, based on the circumstances as they appeared to the student, that the student was in imminent danger of physical harm because the aggressor had committed at least one overt act indicating such danger;

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- c. Used no more force than was reasonably necessary to protect against the threatened physical harm; and
- d. Had no other reasonable means to avoid or prevent the danger.

3. Physical retaliation against any person or willful participation in a fight will not be considered self-defense.

4. The possession or use of any item constituting a weapon under Policy 8235 is strictly prohibited. Sanctions will be imposed in accordance with Policy 8235 regardless of any claim of self-defense.

G. Good Faith Acts. Any student who, in good faith, provides emergency assistance to protect the safety of students or staff will not be subject to disciplinary sanctions for such measures.

[Former Policy 8-25]

Adopted: 9/22/15

Revised: 6/11/19, 6/8/21

Current Revision: 6/23/26

Legal Refs: Code of Virginia §§ [18.2-46.1](#), [18.2-60.3](#), [22.1-253.13:7.C.3](#), [22.1-276.01](#), [22.1-277.2:1](#), [22.1-279.3](#), [22.1-279.6](#), [22.1-280.4](#)

Cross Refs: [Policy 8030](#), Student Discrimination and Harassment; [Policy 8035](#), Title IX, Sex-Based Discrimination, Sexual Harassment; [Policy 8120](#), Compulsory Attendance; [Policy 8205](#), Authority to Take Disciplinary and Other Action Against Students; [Policy 8220](#), Student Disciplinary Sanctions; [Policy 8235](#), Weapons; [Policy 8240](#), Alcohol, Drug, Tobacco, and Electronic Cigarettes; [Policy 8250](#), Bullying Prevention and Education; [Policy 8270](#), Student Dress Code; [Policy 8650](#), Student Technology Acceptable/Responsible Use Policy; [Policy 8655](#), Student Personal Device Use; [Regulation 8030.4](#), Hazing; [Regulation 8220.1](#), Implementing Student Disciplinary Sanctions; [Regulation 8220.2](#), Expulsion by School Board; [Regulation 8220.3](#), Disciplinary Procedures for Students with Disabilities